

26STCP01416 26STCP01416

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Case Number: 26STCP01416 Hearing Date: August 5, 2026 Dept: 510

No. 11- Infinity Insurance Company v.

Adrian Uriarte Rios

Petitioner Infinity

Insurance Company's Motion to Obtain Cellular Phone Records from T-Mobile, or
Alternatively, To Enforce Deposition Subpoena

Petitioner

Infinity Insurance Company moves the Court to issue an order requiring T-Mobile to produce cell phone records. In the alternative, Petitioner moves to enforce the deposition subpoena for production of business records.

The

Court cannot grant the relief Petitioner seeks.

The

Court acknowledges that Petitioner filed a "petition for superior court case number for the purpose of issuing subpoenas to witnesses for documents" on April 9, 2026. Petitioner was assigned a case number and served a deposition subpoena on T-Mobile on May 4, 2026. (Colman Decl., Ex. B.) T-Mobile has since objected to the subpoena, stating that it requires a court order to release the desired phone records, even with the authorized deposition subpoena and written consent from Respondent.

The

Court is unaware of any legal authority permitting an insurance company to issue and enforce deposition subpoenas for its use in its claim investigations. Importantly, Code of Civil Procedure section 1985(c) provides, in relevant

part, "An attorney at law who is the attorney of record in an action or proceeding, may sign and issue a subpoena duces tecum to require production of the matters or things described in the subpoena." (Code Civ. Proc. § 1985(c) [emphasis added]; see also Code Civ. Proc. § 1985.3(a)(3) ["Subpoenaing party' means the person or persons causing a subpoena duces tecum to be issued or served in connection with any civil action or proceeding pursuant to this code."].) The Civil Discovery Act states that " 'Action' includes a civil action and a special proceeding of a civil nature." (Code Civ. Proc. § 2016.020(a).) A civil case is "a case prosecuted by one party against another for the declaration, enforcement, or protection of a right or the redress or prevention of a wrong." (California Rules of Court, rule 1.6.)

Here,

the Petition does not seek any declaration, enforcement, or protection of any right, nor does it seek to prevent or redress a wrong. It does not appear that Petitioner has any intention to file a lawsuit, and is seeking the business records only in its administrative, investigative capacity. Moreover, the Court is not aware of any authority under the Insurance Code that allows an insurance company to invoke subpoena power for this limited purpose. Petitioner does not identify any such authority in its Petition. Since there is no action or proceeding, Petitioner could not issue a valid subpoena, nor can it compel enforcement of one.

Disposition

Petitioner

Infinity Insurance Company's motion to obtain cellular phone records from T-Mobile, or alternatively, to enforce deposition subpoena is denied. Because no further relief is requested, the Court dismisses the Petition.